



September 17, 2026

VIA ECF

The Hon. Arun Subramanian
United States District Court
Southern District of New York
Daniel Patrick Moynihan United States Courthouse
500 Pearl Street, Courtroom 15A
New York, NY 10007

Re: *Ward v. Indyke et al.*, Case No. 24-cv-1204-AS

Dear Judge Subramanian:

On behalf of Plaintiff and the Class, we write in response to the Court's orders from yesterday's Settlement Hearing concerning additional notice via social media. Class Counsel has consulted with the Fund Administrator, Simone Lechuk, and her team of consultants at JND Legal Administration ("JND"), and propose the following that tracks the social media campaign used in the settlement in *Doe v. Bank of America, N.A.*, 2025 Civ. 8520 (S.D.N.Y.) (JSR). *See* Dkt. 435-2 at 6:19-22 (*Bank of America* hearing transcript describing social media campaign approved in that case). We conferred with Defendants' counsel concerning this proposal and Defendants consent.

Under Ms. Lechuk's supervision, JND will deploy a four-week social media campaign on Facebook and Instagram using Feed and Stories placements served across desktop and mobile devices. These placements will target Women ages 18-49 in key geographic areas in the U.S. where survivors are most likely to be located. In addition to placements domestically, JND will target international survivors, including those located in France and Ukraine. The Feed and Stories ads will also be translated into French, Russian, and Ukrainian. Based on JND's experience, including managing the *Bank of America* campaign, the social media campaign is expected to deliver three million "impressions" at an estimated cost of \$50,000.

When clicked, each placement will direct the viewer to the Settlement website, <https://www.sdneysettlementfund2026.com/>. Upon the Court's approval, the Settlement website will be updated to describe the extension of deadlines for potential Class Members who have not already submitted claims or opt-outs within the prior deadlines, and provide access to the applicable forms.

Plaintiff proposes that the opt-out deadline for newly noticed Class Members be 30 days after the social media campaign commences and that opt outs be limited to those who first received notice of the settlement from this social media campaign, and that the deadlines for the submission of claims and any Objections to the Settlement be 60 days after the social media campaign commences.¹ Per the Court's guidance, Plaintiff further proposes that the Parties file a joint status report three days after the new deadline to submit claims.

¹ Because JND requires three business days of lead time to implement the social media campaign and update the Settlement website, the revised deadlines should be calculated as three business days plus 30 or 60 calendar days from the date of the Court's order.

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For the foregoing reasons, Plaintiff respectfully requests that the Court endorse this letter and so-order supplemental notice consistent with the above. Plaintiff also requests that the Court schedule a final approval hearing to occur during the week of November 30.

GRANTED IN PART, DENIED IN PART.

The Court agrees with the proposed social media plan. The opt-out deadline should be 3 business days plus 60 days.

Additionally, the Court hereby orders a final approval hearing for **December 2, 2026, at 2 PM ET** to be held in Courtroom 15A of the Daniel Patrick Moynihan Courthouse, 500 Pearl Street, New York, NY 10007.

SO ORDERED.



Arun Subramanian, U.S.D.J.
Date: September 17, 2026

Respectfully submitted,

/s/ Sigrid S. McCawley

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